

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

RASHAWN BELLE,

Plaintiff,

-against-

THE CITY OF NEW YORK, LIEUTENANT ANTHONY
GUADAGNO, formerly known as Sergeant Anthony Guadagno
(SHIELD NO. 1621), POLICE OFFICER ANTHONY MAIDA
(SHIELD NO. 12539), POLICE OFFICER RICHARD VARGAS
(SHIELD NO. 29756), SERGEANT SEAN DONOHUE (SHIELD
NO. 1921),

Defendants.

ECF CASE

**AMENDED
VERIFIED COMPLAINT**

10 CV 3531(JG)(RML)

Jury Trial Demanded

PRELIMINARY STATEMENT

1. This is an action for money damages brought pursuant to the Civil Rights Act of 1871, 42 U.S.C. §1983 for the Defendants' commissions of acts under color of law in violation of the Plaintiff's rights under Fourth, Sixth, and Fourteenth Amendment to the United States Constitution and Article I, Section 12 of the New York State Constitution and of common law of the State of New York. The case arises from an August 23, 2008 incident in which members of the New York City Police Department ("NYPD") subjected plaintiff to false arrest, excessive force, assault and battery, illegal strip search and anal cavity search, and fabricated evidence.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983, and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by the aforesaid statutes and 28 U.S.C. §§ 1331 and 1343.

3. Plaintiff invokes the supplemental jurisdiction of this Court pursuant to 28 U.S.C. § 1367 to hear and decide his state law claims of assault and battery. With respect to this state law claim, a notice of claim was duly filed on the City of New York within 90 days of the incident in question, more than 30 days have elapsed since such filing, and the City has refused to settle plaintiff's state law claim.

4. Venue is proper pursuant to 28 U.S.C. § 1391(b) and (c) because defendant City of New York is subject to personal jurisdiction in the Eastern District.

PARTIES

5. Plaintiff is a resident of the State of New York, County of Kings.

6. The City of New York is a municipal corporation organized under the laws of the State of New York.

7. The New York City Police department (the "NYPD") is the department of the City responsible for, among other functions, arresting persons for offenses and maintaining custody over such persons prior to their initial appearance in court. At all times relevant hereto, the NYPD, together with the City, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, and conduct of all NYPD personnel. In addition, at all relevant times, defendant NYPD, together with the City, was responsible for enforcing the rules of the NYPD, and for ensuring that NYPD personnel obeyed the Constitutions and laws of the United States and of the State of New York.

8. At all relevant times herein, Lieutenant Anthony Guadagno, formerly known as Sergeant Anthony Guadagno, Shield No. 1621, was a member of the 60th Precinct who

violated plaintiff's rights as described herein. Lieutenant Guadagno is sued in his individual and official capacity.

9. At all relevant times herein, Police Officers Anthony Maida and Richard Vargas and Sergeant Sean Donohue, were members of the 60th Precinct who acted with Lieutenant Guadagno in violating plaintiff's rights. Police Officers Maida and Vargas and Sergeant Donohue are sued in their individual and official capacities.

STATEMENT OF FACTS

10. On August 23, 2008, at approximately 11:20 p.m., in the vicinity of 2930 West 30th Street, Brooklyn, New York, Lieutenant Guadagno, Sergeant Donohue and Police Officers Maida and Vargas arrested plaintiff without cause and falsely charged him with criminal possession of a weapon in the second and fourth degrees.

11. At all relevant times, plaintiff was not involved in criminal activity. Plaintiff was lawfully standing in the vicinity of 2930 West 30th Street when, without cause, the officers ordered plaintiff, and approximately eight other individuals, out of a larger group to move down a ramp into an enclosed area, at which time plaintiff was attacked, searched and assaulted by Lieutenant Guadagno, Sergeant Donohue and Police Officers Maida and Vargas wherein no weapon was ever possessed by or recovered from plaintiff.

12. Plaintiff, along with eight other arrestees, was taken to the 60th Police Precinct, where he was searched, strip searched and forced to remove all his clothing, including his underpants, and then squat, cough and be subjected to an anal cavity inspection, and was thereafter taken to Brooklyn Central Booking to await arraignment for approximately forty (40) hours.

13. While plaintiff was awaiting arraignment, the officers who arrested plaintiff met with a prosecutor employed by the Kings County District Attorney's Office.

14. The officers falsely stated to the prosecutor that plaintiff committed various crimes.

15. The District Attorney's Office, based solely on the officers' false statements, filed charges against plaintiff.

16. As a result of the aforesaid misrepresentation, felony charges were filed against plaintiff.

17. Plaintiff was arraigned on August 25, 2008 at approximately 4:00 p.m., at which time the Court, upon the request of the District Attorney, based solely on the officers' false statements, set bail and plaintiff was transferred into the custody of the New York City Department of Corrections.

18. On August 29, 2008, at approximately 5:00 p.m., plaintiff was released by the Department of Corrections based upon the District Attorney's failure to indict him pursuant to the provisions of C.P.L. § 180.80.

19. Plaintiff was nevertheless thereafter forced to defend himself against these baseless allegations and return to court approximately two (2) more times.

20. On March 27, 2009 in Brooklyn Criminal Court, the case against plaintiff, under docket number 2008KN062949, was dismissed on motion by the District Attorney and sealed by the Court.

21. As a result of defendants' actions, plaintiff experienced physical injuries, emotional distress, fear, embarrassment, humiliation, discomfort, pain and suffering, loss of liberty, and damage to reputation.

**FEDERAL AND STATE LAW CLAIMS
AGAINST LIEUTENANT GUADAGNO,
SERGEANT DONOHUE AND POLICE
OFFICERS MAIDA AND VARGAS**

22. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-21 as if fully set forth herein.

23. The conduct of Lieutenant Guadagno, Sergeant Donohue and Police Officers Maida and Vargas, as described herein, amounted to false arrest, excessive force, assault and battery, illegal strip and anal cavity search, and fabricated evidence. This conduct violated plaintiff's rights under 42 U.S.C. § 1983, the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution and the laws of the State of New York.

**FEDERAL AND STATE LAW CLAIMS
AGAINST THE CITY OF NEW YORK**

24. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-23 as if fully set forth herein.

25. The City of New York directly caused the constitutional violations suffered by plaintiff.

26. Upon information and belief, the City of New York, at all relevant times herein, was aware from notices of claim, lawsuits, complaints filed with the City, NYPD and the Civilian Complaint Review Board, and from the City and NYPD's own observations, that the individual defendants are unfit, ill-tempered police officers who have the propensity to commit the acts alleged herein.

27. Nevertheless, the City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline,

and monitor the officers and improperly retained and utilized them. Moreover, the City of New York failed to adequately investigate prior complaints against the officers.

28. The aforesaid conduct by the City of New York violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution.

29. Moreover, because the individual defendants were acting within the scope of their employment as members of the NYPD during the incident in question, the City of New York is vicariously liable under state law for the assault and battery of plaintiff.

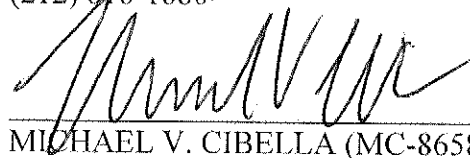
WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees;
- d. Such other and further relief as this Court may deem just and proper,

including injunctive and declaratory relief.

DATED: February 3, 2011
New York, New York

LAW OFFICES OF MICHAEL V. CIBELLA, LLC
On behalf of RASHAWN BELLE
Attorneys for Plaintiff
546 Fifth Avenue
New York, New York 10036
(212) 818-1880



MICHAEL V. CIBELLA (MC-8658)

VERIFICATION

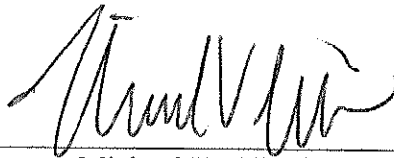
STATE OF NEW YORK)
) ss:
COUNTY OF NEW YORK)

MICHAEL V. CIBELLA, ESQ., being duly sworn, deposes and says:

1. I am an attorney at law, duly admitted to practice before the Courts of the State of New York and a member of the LAW OFFICES OF MICHAEL V. CIBELLA, LLC, attorneys for plaintiff RASHAWN BELLE.

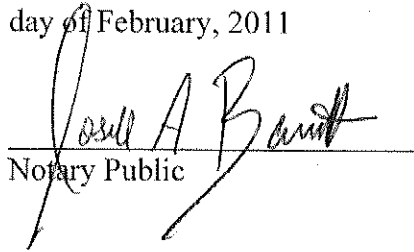
2. I have read the annexed Verified Complaint, know the contents thereof to be true to my knowledge, except those matters therein stated to be alleged on information and belief, and as to those matters, I believe them to be true based upon my personal knowledge and my review of the files maintained by my office.

3. The reason this Verification is being made by me is that plaintiff does not reside in the county where my office is located.



Michael V. Cibella, Esq.

Sworn to before me this 3rd
day of February, 2011



Notary Public

JOSEPH A. BARATTA
NOTARY PUBLIC-STATE OF NEW YORK
No. 028A5026222

Qualified in New York County
My Commission Expires May 23, 2010

July 14, 2011